

Day 17

इस हाशिये में
उम्मीदवार कुछ
न लिखें

Candidate
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बि. लो. से. आ.

B.P.S.C

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Q Fundamental Duties were incorporated in Constitution to balance Citizen right with responsibilities. Critically Analyse evolution, significance, legal enforceability of fundamental Duties in India.

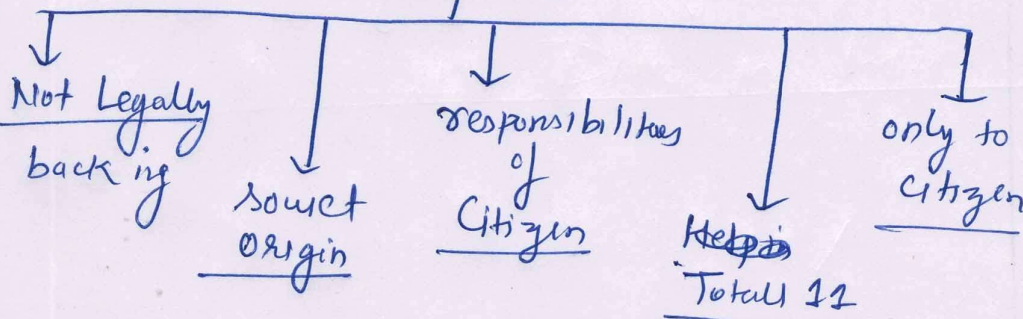
Ans Fundamental Duties enshrined in part IV A (41-51A) are moral and ethical responsibilities of Citizen toward Nation.

It was incorporated on recommendation of Swaran Singh Committee in 1976. during period of emergency

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Features



Gandhiji famously quoted in Hind Swaraj
"Real rights are ~~a~~ result of performance of duty"

It shows that if we ~~also~~ discharge our duties, right will not be far to seek.

Evolution of Duties

Provision

- 1) 42nd CAA 1976
↓
 - 10 fundamental duties were incorporated
 - added Part IV 'A'

Criticism

➤ Incorporated in backdrop of Internal emergency

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44th Duties was
added by 86th
amendment in 2002

• Critics and expert
argue that Duties
were included to limit
demand of a violation of
right during emergency

SIGNIFICANCE

Provision

i) Complementing
fundamental right

ii) Helping in judiciary
interpretation of Law
polices

eg Ranganath Mishra
Vs
UOI

iii) Reminder of
responsibilities

Criticism

i) Often result in
Conflict with right

ii) No Legal
Backing enforcement

iii) Some duties are
Vaguely phrased
Leads to Confusion

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iv) promoting harmony
brotherhood among
people

iv) Incident of
Communal clashes

iv) protecting environment
forest, Lake, river
by ~~state~~ Environmental
protection Act.

v) Ignoring
Sustainability over
growth result
in climate change

Legal Enforceability

i) Ranganath Mishra
vs
UOI
Advocated for enforce-
ment of fundamental
duties

i) No 'Constitutional
backing for
implementation

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11) AIIMS Student Union

vs
AIIM
↓

fundamental duties are
equal important like
rights

11) Critics argue
inclusion of duties
as separate part (IV D)
reduced importance

Enforceable
through Legislation



Wildlife Protection Act 1972



Protection of Civil Rights Act



National Honour Act

Way forward



Awareness Campaign



Community Engagement
to fulfil duty

Fundamental Duties play Vital role
reminding duties of Citizen. However
It can be more effectively implemented
through legal and social sanction
given in Ranganath Mishra
Judgement 2003